

Explosives Act, 1961

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Explosive Substances Act, 2018

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Amending Acts

1. Nepal Act (Amending) Act, 2018 2018.7.30 2018.8.1
2. Nepal Acts Amending Act, 2018 2018.8.23 2018.9.13
3. Nepal Acts Amending, Repealing and Reorganizing for Continuance Act, 2019 2019.12.30
4. Explosive Substances (First Amendment) Act, 2031 2031.6.20
5. Explosive Substances (Second Amendment) Act, 2048 2048.7.14

Certification and Publication Date

6. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
7. Some Nepal Acts Amendment Act, 2072 2072.11.13
8. Some Nepal Laws Amending, Consolidating, Adjusting and Repealing Act, 2074 2074.6.30

Act No. 8 of the year 2018

An Act Made to Regulate the Production, Use, Sale, Transport and Import of Explosive Substances

Preamble: Amended by the Nepal Acts Amending, Repealing and Reorganizing for Continuance Act, 2019. Whereas it is desirable to regulate the production, keeping, use, sale, transport and import of explosive substances for maintaining peace and order;

Now, therefore, the Federal Parliament has enacted this Act. This Act is made by His Majesty King Mahendra Bir Bikram Shah Dev Amended by the Nepal Acts Amending, Repealing and Reorganizing for Continuance Act, 2019. in accordance with Article 93 of the Constitution of Nepal. 1. Short Title, Extent and Commencement: (1) Amended by the Nepal Acts Amending Act, 2018. This Act may be called the "Explosive Substances Act, 2018".

(2) This Act shall apply throughout Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) This Act shall come into force on the date specified by the Government of Nepal by publishing a notice in the Nepal Gazette. Notice published in the Nepal Gazette dated 2020.8.29 bringing the Act into force from the date 2020.8.29. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) Amended by the Some Nepal Laws Amending, Consolidating, Adjusting and Repealing Act, 2074. "Explosive substance" means I.E.D.,

T.N.C., Amatol, Barotol, Pentolite, Rapid Detonating Explosive (R.D.X), Torpex, Blasting Explosive, Dynamite, Gunpowder, Nitroglycerine, Gelignite, Stemite, Celsite, Detonator, Blasting Cap, Electric Blasting Cap, Fuse, Fireworks, Firecrackers, Gun Cotton, Gun Powder, Blasting Powder, Fulminate of Mercury or any other metal, any other substance of a similar explosive nature, or any substance specified by the Government of Nepal from time to time by publishing a notice in the Nepal Gazette, and the term also includes a bomb. (a1) Added by the Some Nepal Laws Amending, Consolidating, Adjusting and Repealing Act, 2074. "Bomb" means a grenade or any other object or substance of a similar explosive nature containing an explosive substance, made to explode by itself or by any other substance, by means of any explosive substance or any other device, formula, process or method." (b) "Production" includes the method of separating or breaking an explosive substance into parts, or the method of repairing a damaged explosive substance to make it usable, and also the method of remaking, altering or repairing an explosive substance. (c) "Carrier" includes motor, vehicle, cart, rickshaw, boat, tonga, and any other means of transport carrying goods or passengers by water, land or air. (d) "Import" means the act of bringing into Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. (e) "License" means a license granted under this Act. (f) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act. 3. Power to Declare Explosive Substances: The Government of Nepal may, from time to time, by publishing a notice in the Nepal Gazette, declare any substance to be an explosive substance if it appears that, due to the presence of explosive elements in it or due to the possibility of any kind of explosion when adopting the methods required in the process of its production, there is a danger to the life or property of persons; and every substance so declared shall be deemed to be an explosive substance for the purposes of this Act. 4. License Required: (1) Amended by the Some Nepal Laws Amending, Consolidating, Adjusting and Repealing Act, 2074. A person wishing to produce, keep, use, sell, transport or carry, or import explosive substances shall obtain a license in accordance with this Act.

The format of each such license, the fee payable therefor, and its validity period shall be as prescribed. (2) A person wishing to obtain a license for the production, keeping, use, sale, transport or carriage, or import of any explosive substance, or to renew such license, shall submit an application in the prescribed form, containing the prescribed particulars, to the Chief District Officer. (3) Subject to this Act or the rules made thereunder, the Chief District Officer may, after giving notice to the concerned licensee of any matter written in a license, make amendments if deemed necessary. (4) Any person wishing to amend his license shall submit an application to the Chief District Officer stating the amendment desired and the reason therefor. The fee for such amendment shall be as prescribed. 4a. Record of Production or Transaction to be Maintained: Added by the Some Nepal Laws Amending, Consolidating, Adjusting and Repealing Act, 2074. (1) A person licensed to produce or deal in explosive substances shall maintain a separate record of each explosive substance produced, manufactured, prepared or dealt with, each time such production, manufacture, preparation or transaction occurs. (2) The record under subsection (1) shall, in addition to other matters, contain the following details:- (a) what types of explosive substances and in what quantity were produced, prepared or manufactured; (b) if any transaction of explosive substances took place, for what purpose the transaction occurred; (c) if any sale or distribution of explosive substances took place, to which person, for what purpose, and in what quantity the sale or distribution was made. (3) The record maintained under subsection (1) shall be made available by the person dealing in explosive substances to the Chief District Officer, an officer conducting inquiry or prosecution of a case, or an officer hearing a case, upon demand. (4) A person acting contrary to this section shall be liable to imprisonment for a term up to three months or a fine of up to five thousand rupees or both. 4b. Precautions to be Taken: Added by the Some Nepal Laws Amending, Consolidating, Adjusting and Repealing Act, 2074. A person licensed to deal in explosive

substances shall, when using, transporting or carrying, or storing such substances, use them ensuring sufficient safety according to the nature of such substance, or transport, carry or store them cautiously by placing them in appropriate containers. 5.

Power of Government of Nepal to Prohibit and Regulate Production, Use, Sale, Transport, Import and Keeping of Explosive Substances: Notwithstanding anything contained in any other section of this Act, the Government of Nepal may, if it deems necessary for public safety, from time to time, by publishing a notice in the Nepal Gazette, wholly or partially prohibit the production, keeping, use, sale, transport or import of any explosive substance. 6. Power to Inspect, Search, Seize, Attach and Remove: (1) The Chief District Officer or any gazetted police officer or, at a minimum, a police officer of the rank of Deputy Inspector, deputed by him, may enter any place or carrier where any explosive substance is being produced, kept, used, sold, transported or imported under a license, inspect and examine it, and take samples of any explosive substance found there upon payment of the value. (2) If there is reasonable cause to believe that in any place or carrier, any explosive substance is being produced, kept, used, sold, transported or imported in contravention of this Act or the rules made thereunder, the Chief District Officer or any gazetted officer deputed by him, or, at a minimum, a police officer of the rank of Deputy Inspector, may enter such place or carrier, inspect and examine, search, and if any such explosive substance is found, seize and attach it. 7. Power to Arrest: (1) Amended by the First Amendment.

If it becomes necessary to arrest any person in connection with an investigation of any offense under this Act, the investigating officer shall submit an application to the court hearing the case, stating the reason for arrest and details identifying such person, for permission to arrest. (2) If the reason for arrest appears reasonable from the application under subsection (1), the court hearing the case may grant permission to issue an arrest warrant. (3) The police shall arrest the person for whom the arrest warrant has been issued under subsection (2) and produce him before the court hearing the case within twenty-four hours, excluding the travel time. (4) If any person is found about to commit any offense punishable under this Act, and if it appears that such act may cause an explosion or fire at or around any place where explosive substances are produced or stored, or any railway line, any airport, or any carrier, the person in possession of such place, or his representative, or any other person authorized by him, or the owner or employee of public transport, or any employee of the railway administration or airport, shall make arrangements to prevent such person from escaping and inform the police. (5) Notwithstanding anything contained in subsection (1), in the situation mentioned in subsection (4), or if there is reasonable cause that such person may escape, flee or destroy evidence, proof or testimony if not arrested immediately, the police may arrest such person without an arrest warrant, and the arrested person shall be produced before the court hearing the case within twenty-four hours, excluding the travel time. 8. Notice of Accident: If an explosion or fire occurs at a place where explosive substances are being produced, kept or used, or at or around any carrier where explosive substances are being transported or loaded or unloaded, causing loss of life or property, or substantial damage, the person currently in possession of such place, or the owner or current driver of such carrier, shall give notice of such occurrence to the officer-in-charge of the nearest police post or station, in the prescribed manner and within the prescribed period. 9.

Investigation of Accident: (1) If any accident as described in section 8 occurs at or around any place or carrier under the control of the Nepali Army, the concerned officer of the Nepali Army shall investigate the cause of such accident; and if such accident occurs elsewhere, the Chief District Officer shall investigate the cause of such accident. (2) The military officer conducting the investigation under subsection (1) or the officer deputed by the Government of Nepal under subsection (4) shall have all powers equal to those of a Chief District

Officer, and may also exercise the powers exercisable by a Chief District Officer under section 6, if deemed necessary and appropriate for the purpose of such investigation. (3) The person investigating any accident under this section shall, after completing the investigation, submit a written report to the Government of Nepal stating the cause and circumstances of the accident. (4) After receiving the report under subsection (3), or even before receipt, the Government of Nepal may, if deemed necessary having regard to the nature of the accident, order the cessation of the investigation under subsection (1) and may cause the cause of such accident to be investigated by any other officer it deems appropriate. (5) The officer deputed to conduct an investigation under this section shall have the same powers as a court of first instance under the prevailing Nepal law with respect to summoning witnesses, requiring the production of documents and other important goods, and recording statements and depositions. Amended by the First Amendment.

10. Penalties and Confiscation: (1) If any person produces, keeps, uses, sells, transports or imports the following explosive substances without obtaining a license under section 4, or in contravention of section 5, such person shall be liable to the following penalties for each offense:- (a) If the substance is nitroglycerine, dynamite, blasting powder, or fulminate of mercury or metal, imprisonment for up to two years or a fine of up to Amended by the Second Amendment.twenty thousand rupees, or both; (b) If the substance is an explosive substance other than those mentioned in clause (a) and fireworks and firecrackers, imprisonment for up to one year or a fine of up to Amended by the Second Amendment.ten thousand rupees, or both; (c) If the substance is fireworks or firecrackers, a fine of up to Amended by the Second Amendment.one thousand rupees.

Provided that, when imposing punishment in respect of the same explosive substance, if punishment is imposed for production, import or use, there shall be no separate punishment for keeping such substance in possession; and if punishment is imposed for import, use or sale, there shall be no separate punishment for transport.

(2) If any person violates the conditions of a license obtained under section 4, or violates any rule made under this Act, such person shall be liable to a fine of up to Amended by the Second Amendment.five thousand rupees for matters under clause (a) of subsection (1), up to Amended by the Second Amendment.two thousand five hundred rupees for matters under clause (b), and up to Amended by the Second Amendment.five hundred rupees for matters under clause (c). Explanation: If the license period has expired, or if an act is done which the license does not authorize, it shall be considered as not having obtained a license and action and punishment shall follow accordingly.

(3) Explosive substances related to an offense under section 4 or 5 shall be confiscated and shall vest in the Government of Nepal.

11. Saving of Nepal Law Relating to Arms and Ammunition: Nothing in this Act shall affect anything in the Nepal law relating to arms and ammunition. Provided that, if the Chief District Officer, who grants a license for the production, keeping, use, sale, transport or import of an explosive substance, has the power under the rules made under this Act, he may write in such license that it shall be recognized as if granted under the Nepal law relating to arms and ammunition.

12. Punishment Possible under Other Nepal Law: If an offense is punishable under this Act and also under any other Nepal law, nothing in this Act or the rules made thereunder shall prevent the prosecution of any person under such other Nepal law, or the imposition of punishment under such other Nepal law which provides for a higher penalty than this Act.

13. Exemption and Power of Non-Application: (1) Nothing in this Act shall apply to the production, keeping, use, transport or import of explosive substances by the following persons or authorities:-

- (a) By the Nepali Army in accordance with the rules made by the Government of Nepal; and
- (b) By any ministry, department or office of the Government of Nepal.

(2) The Government of Nepal may, by publishing a notice in the Nepal Gazette, direct that all or any provisions of this Act or the rules made thereunder shall not apply to any explosive substance, either wholly or subject to certain conditions. 14.